

HOUSE No. 480

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Badger and Kathleen R. LaNatra

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to supporting veterans organizations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/10/2025</i>

HOUSE No. 480

By Representatives Badger of Plymouth and LaNatra of Kingston, a petition (accompanied by bill, House, No. 480) of Michelle L. Badger relative to authorizing video gaming activities and certain veterans organizations. Economic Development and Emerging Technologies.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 417 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to supporting veterans organizations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 3A. Chapter 23K of the General Laws is hereby amended by inserting after
2 section 20 the following section:-

3 Section 20A. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Limited video gaming machine/VGT establishment”, the premises owned or leased by a
6 veterans’ organization for use by its patrons.

7 “Limited video gaming machine license”, a gaming license issued by the commission that
8 permits a veterans’ organization to operate a gaming establishment with no table games and not

more than 5 video gaming terminal(VGT) machines at a limited video gaming machine establishment.

“Limited video gaming machine licensee”, a veterans’ organization that holds a limited VGT machine license for its limited video gaming machine establishment. All bets are limited to \$2.00 and the maximum win is \$599 for a limited video gaming machine license.

“Local licensing authority”, the local licensing authority in the city or town in which the limited video gaming machine establishment is located.

“Veterans’ organization”, any federally chartered veterans’ organization that is: (i) incorporated by the Congress of the United States and (ii) included in section 4E of chapter 9.

(b) The commission may issue a limited VGT machine license to veterans’ organizations in the commonwealth.

A limited video gaming machine license shall only be issued to a veterans’ organization that has paid all taxes and is in good standing with the Alcoholic Beverage Control Commission.

No limited video gaming machine license issued to a veterans’ organization pursuant to this section shall be transferred or assigned.

(c) A limited video gaming machine license issued by the commission pursuant to this section may be suspended or revoked at the discretion of the commission or upon written request to the commission by the local licensing authority. The suspension or revocation of a license issued pursuant to this section may be appealed by the limited video gaming machine licensee to the full commission, and the commission shall hear the appeal on the record. The decision rendered by the commission after the hearing shall be final and the licensee shall not be entitled

to further review; provided, however, that in the case of a license revocation, the licensee shall be entitled to reapply for a license not less than 5 years from the date in which the final decision of the commission was issued.

(d) A limited video gaming machine licensee shall limit the promotion and operation of, and access to, video gaming machines to members in good standing of the veterans' organization as well as bonafide members guests over 21 years of age, provided, that no employee or member of the veterans' organization, holding a limited video gaming machine license shall receive remuneration in any form for time or effort devoted to the promotion or operation of the slot machines.

(e) All VGTs shall be controlled and monitored by a central computer system established by the Commission. No location employees will be allowed to handle cash at any time. There shall be a kiosk connected to the central computer system to securely dispense any winnings. VGTs will only accept cash, no credit or debit cards. Every VGT must have a randomly generated outcome.

(f) A limited video gaming machine license issued pursuant to this section shall be valid for a period of 5 years. The commission shall establish procedures for application and renewal and may establish a fee for application or renewal not to exceed \$500. Application and renewal fees shall be deposited into the Gaming Revenue Fund established in section 59 of Chapter 23K.

(g) All manufacturers/distributors, operators and employees and locations receiving a limited video gaming machine license must be compliant with all aspects of Chapter 23K with regard to background checks for all individuals. A manufacturer/distributor can only have a manufacturer/distributor license. An Operator can only have an operator's license. A location can

only have a location license. All licenses will be controlled and issued by the commission. No entity may possess 2 different types of licenses.

(h) Each licensee shall file a return with the commission, on a form prepared by the commission, and shall pay therewith a tax of 35 per cent of the gross profits derived from the video gaming machines located in the limited video gaming machine establishment, which shall be deposited into the Gaming Revenue Fund established in section 59 of Chapter 23K.

(i) No person under 21 years of age shall be permitted in that portion of any building or premises of the licensee during such time as a video gaming machine is being played.

(j) A limited video gaming machine establishment shall keep conspicuously posted on their premises a notice containing the following statement: "If you or someone you know has a gambling problem and wants help, call the Massachusetts Council on Gaming and Health on the Safer Gaming Education Line at 1-800-426-1234 or the Massachusetts Department of Public Health helpline at 1-800-327-5050."

(k) Limited video gaming machine licensees shall only acquire video gaming machines from a person licensed as a gaming vendor under section 31 of Chapter 23K. All manufacturers/distributors, operators, approved locations, and all operator employees who repair or handle VGT machines, must be licensed by the commission.

(l) The commission shall, consistent with the public objectives of this chapter established in section 1, promulgate regulations for the implementation, administration and enforcement of this section including, without limitation, regulations that prescribe: (i) the method and form of application which an applicant for licensure shall follow and complete before consideration by the commission; (ii) the information to be furnished by an applicant for a limited video gaming

74 machine license or for the renewal of a limited video gaming machine license; (iii) suitability
75 standards for applicants for licensure pursuant to this section; (iv) the criteria for evaluation of
76 the application for a limited video gaming machine license and qualifications for licensure
77 pursuant to this section; (v) the information to be furnished by a veterans' organization relating
78 to the members of the veterans' organization tasked with managing the video gaming machines;
79 (vi) criteria for eligibility for licensure under this section; (vii) conditions on the operation and
80 control of a limited video gaming machine establishment; and (viii) grounds and procedures for
81 the revocation or suspension of a limited video gaming machine license.